

Court No. - 29

Case :- WRIT - C No. - 10928 of 2019

Petitioner :- M/S J.P Textiles

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Satyam Narayan

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Learned counsel for the petitioner is permitted to amend the writ petition so as to challenge the order dated 15.03.2019. He may do so within two days.

Put up as fresh on 11.04.2019.

Order Date :- 8.4.2019

piyush

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Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

The petitioner has applied for amending the writ petition so as to add a prayer for quashing of the order dated 15.03.2019.

In view of the fact that the amendment is of a formal nature, we allow the amendment.

The Amendment Application No. 2 of 2019 is **allowed**.

The necessary amendments be incorporated in the petition within 3 days.

Put up on Tuesday i.e. **16.04.2019** as fresh.

Order Date :- 11.4.2019

Nirmal

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The petitioner is claiming to be a power loom consumer of electricity and that it is entitled to subsidy in accordance with Government Order dated 14.6.2006. The Executive Engineer vide his order dated 15.3.2019 considered the claim of the petitioner in this regard and has opined that the subsidy under the aforesaid Government Order is admissible only to power loom consumers having electricity connection upto 1 H.P. whereas the petitioner's connection is of 3 H.P. and as such is out side purview of the aforesaid Government Order.

Aggrieved by the aforesaid action and the demand raised by bill dated 21.2.2019 without granting any subsidy to the petitioner this writ petition has been preferred.

In view of the dispute as raised by the petitioner regarding admissibility of the subsidy under the Government Order dated 14.6.2006 and the correctness of the demand as per bill dated 21.2.2019, the petitioner has a remedy of approaching the Consumer Grievance Redressal Forum and Ombudsman created under Section 7.10 of the Electricity Supply Code-2005.

In view of the alternative remedy available to the petitioner for approaching the forum and thereafter the

ombudsman by means of appeal, we do not consider it to be a fit case for exercising our discretionary jurisdiction in favour of the petitioner and the petition is disposed of with liberty to the petitioner to avail the aforesaid remedy.

Order Date :- 16.4.2019
Pramod Tripathi